



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DEC 19 1991

DOT-E 10665

1. General American Transportation Company, Chicago, Illinois is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations subject to the limitations and special requirements specified herein. This exemption authorizes a modified retest schedule for DOT Specification 111A100W2 tank car tanks, and provides no relief from any regulations other than as specifically stated.
2. BASIS. This exemption is based on General American Transportation Corporation's application of August 8, 1991, submitted in accordance with 49 CFR 107.103.
3. HAZARDOUS MATERIALS (Descriptor and class). Phosphorus trichloride, classed as a corrosive material.
4. PROPER SHIPPING NAME (49 CFR 172.101). Phosphorus trichloride.
5. REGULATION AFFECTED. 49 CFR 173.31 RETEST TABLE 1, footnote "r".
6. MODES OF TRANSPORTATION AUTHORIZED. Rail freight
7. SAFETY CONTROL MEASURES.
 - a. Packagings prescribed are DOT Specification 111A100W1 tank car tanks converted to DOT Specification 111A100W2 with reporting marks as identified on the applicant's request.
8. SPECIAL PROVISIONS.
 - a. Persons who receive packages covered by this exemption may reoffer them for transportation provided no modifications or changes are made to the packages, all terms of this exemption are complied with and a current copy of this exemption is maintained at each facility from which such reoffering occurs.
 - b. Each tank car must be marked "DOT-E 10665" in four letters, on a contrasting background, above the DOT specification number. Additionally, each tank car tank must be marked "INHALATION HAZARD" in letters at least four inches high on a contrasting background in close proximity to the required placards.

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c. Shippers using the packaging covered by this exemption must comply with the shipping paper, marking, labeling, and placarding requirements of 49 CFR Part 172 for materials poisonous by inhalation; all provisions of this exemption, and all other applicable requirements contained in 49 CFR Parts 100-180.

9. REPORTING REQUIREMENTS. Any incident involving loss of packaging contents of packaging failure must be reported to the Associate Administrator for Hazardous Materials Safety as soon as practicable.

10. EXPIRATION DATE. September 10, 1993. Effective October 1, 1993, all packagings for hazardous materials which are poisonous by inhalation must conform with the final rules issued under Docket HM-181.

Issued at Washington, D.C.


Alan I. Roberts
Associate Administrator for
Hazardous Materials Safety

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(Date)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590.
Attention: Exemptions Program.

Dist: FRA.